

support his motion to strike defense counsel's form declaration of demurring party in support of automatic extension (CIV-141). The arguments also appear to mostly mirror those made by Plaintiff in his motion to sustain default, which this Court already rules upon.

The Court already addressed the issues raised in this motion in its May 7, 2026, order relating to Plaintiff's motion to sustain default. That order, denying Plaintiff's motion, was uncontested by Plaintiff. The same reasoning supports denial of the instant motion, and the reasoning and rationale are incorporated herein.

Conclusion

Plaintiff's motion to strike declaration is **denied**.

16. 9:00 AM CASE NUMBER: C25-02965
CASE NAME: MICHAEL CARPENTER VS. NICK OTT
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO NICHOLAS S. SALTER FOR DEF SERA OTT
FILED BY: OTT, SERA
TENTATIVE RULING:

The motion was withdrawn. This case has been assigned to Department 16. Further Case Management Conference is set for November 17, 2026.

17. 9:00 AM CASE NUMBER: MSC20-02134
CASE NAME: TERESA NEENO VS. BARRY HACK
***HEARING ON MOTION IN RE: STAY PENDING APPEAL ON SHORTENED TIME**
FILED BY: KINDER, JUSTIN S.
TENTATIVE RULING:

Defendants' motion to stay proceedings in this action and stay enforcement of judgment pending appeal is **granted in part and denied in part**. The motion is granted as to recordation of the judgment or any easement instrument derived from the judgment. The motion is denied as to the hearing motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Background

Plaintiff Teresa Neeno filed this action seeking a quiet title declaration of an equitable easement to access her property now designated as 4784 Venner Road in Martinez, which had no legal vehicular access without an easement over portions of the privately owned roads in the adjacent Muir Oaks subdivision. The Defendants are the owners of the Muir Oaks parcels underlying the roadways over which Plaintiff sought the easement.

Following a multi-day bench trial, the Court issued its Final Statement of Decision on the bifurcated first phase of trial, entering judgment in favor of Plaintiff Teresa Neeno on her second amended complaint and against Defendants on their cross-complaints (other than the Hjortsvang cross